

IN THE HIGH COURT OF JHARKHAND AT RANCHI

A.B.A. No. 2439 of 2020

Rustam Ali.

.....**Petitioner**

Versus

The State of Jharkhand.

....**Opposite Party**

Coram: THE HON'BLE MR. JUSTICE RONGON MUKHOPADHYAY

For the Petitioner

: Mr. Hardeo Prasad Singh, Advocate

For the State

: Mr. V.N. Jha, A.P.P.

02/31-8-2020

Heard the parties.

Defects, as pointed out by the office, are ignored.

The petitioner apprehends his arrest in connection with Simdega P.S. Case No. 23 of 2020.

It has been alleged that a tender was floated and the petitioner was selected to supply blankets. Accordingly, the blankets were supplied but the specification and quality of the blankets were not met which resulted in institution of the FIR.

Learned counsel for the petitioner has submitted that the blankets which had been supplied by the petitioner had been endorsed by the Circle Officers and it was not found to be of inferior quality. Learned counsel has further submitted that the blankets have already been distributed to the beneficiaries. He has also stated that the firm of the petitioner has been blacklisted by the department.

Learned A.P.P has opposed the prayer for anticipatory bail of the petitioner.

It appears from the allegation that the blankets which were supplied by the petitioner being the successful tenderor did not meet the specifications. There is no allegation that the blankets were not supplied. Infact, as has been stated by the learned counsel for the petitioner that the blankets on being supplied were distributed to the beneficiaries.

Regard being had to the aforesaid facts, I am inclined to extend the privilege of anticipatory bail to the petitioner.

The petitioner, named above, is accordingly directed to surrender in the court below within a period of four weeks from today and pray for regular bail, and in that event, he will be enlarged on bail, on furnishing bail bond of Rs.10,000/- (Ten thousand only) with two sureties of the like

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amount each to the satisfaction of learned Chief Judicial Magistrate, Simdega, in connection with Simdega P.S. Case No. 23 of 2020, subject to the conditions as laid down under Section 438(2) of the Code of Criminal Procedure.

This application stands allowed.

(Rongon Mukhopadhyay, J)

Rakesh/-